

Court No. - 3

Case :- WRIT - C No. - 17357 of 2021

Petitioner :- M/S Sarv Shakti Ice Industries

Respondent :- State Of U P And 3 Others

Counsel for Petitioner :- Sushil Kumar Tewari, Braham Singh

Counsel for Respondent :- C.S.C., Rajesh Yadav

Hon'ble Naheed Ara Moonis, J.

Hon'ble Saumitra Dayal Singh, J.

Heard Shri Braham Singh, learned counsel for the petitioner; learned Standing Counsel for the State and Shri Rajesh Yadav, learned counsel for the respondent nos. 3 and 4.

Present petition has been filed against the impugned recovery certificate dated 17.02.2021 issued by respondent no.4 seeking electricity charges being Rs. 60,00,040/- due to the petitioner.

Grievance of the petitioner is that no benefit has been granted with regard to the amounts already deposited by it.

On the other hand, learned counsel for the respondent submits that the petitioner has not paid any amount since 2014.

Since the disputed facts are involved and the petitioner seeks correction of its bill, we do not find any reason to keep the petition pending or call for a counter affidavit, at this stage.

Insofar as prayer made by the petitioner with respect to correction, is referable to provision of Clause 6.15 of the Uttar Pradesh Electricity Supply Code, 2005 (hereinafter referred to as the 'Code'), the present petition is ***disposed of*** with a direction, in case, petitioner files an application under Clause 6.5(b)(ii) of the Code against a deposit of Rs. 20,00,000/- before the respondent no. 4 within a period of 15 days' from today, the respondent no.4 may proceed to pass appropriate orders regarding correction, as prayed for, within a period of two weeks' thereafter after granting the petitioner an opportunity to be heard. For the purpose of deposit of Rs. 20,00,000/- to be made under this order, benefit may be given of amounts deposited since May, 2021.

For the purpose of the correction sought, the petitioner may be entitled to claim benefit of such deposits only of which he may annex proof along with the objections to be filed in terms of this order.

Order Date :- 28.7.2021

Saurabh